THE STATE
versus
TINASHE MUFUKA

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE 20 February 2026

Criminal Review Judgment

TSANGA J: The convicted person is a male aged nineteen (19) years. He was convicted of the offence of having sexual intercourse with a young person, namely the complainant, a female aged seventeen (17) years, contrary to the law.

The facts, as established in the court below, were that the convicted and the complainant were in a consensual boyfriend–girlfriend relationship at the time of the offence. It was not disputed that sexual intercourse took place between them. The law clearly provides that a person below the age of eighteen years is incapable of giving lawful consent to sexual intercourse. Consequently, despite the existence of a relationship and apparent consent, the accused was rightly convicted. The statutory penalty is a level twelve fine or 10 years imprisonment and the presumptive penalty is three years. Indeed, a sentencing court can go higher or lower than the presumptive sentence although either way it must be justified. The sentencing Guidelines SI 146/2023 list the aggravating factors for this offence as follows:

- Age disparity between the offender and the victim was wide.
- Offence resulted in pregnancy or STI.
- Offender promised to marry the young person.
- Offender exposed the young person to harmful sexual content.
- Prolonged sexual relationship.

In this instance, the court below considered the **aggravating factor** that the offence involves a minor, and the law seeks to protect children from premature sexual activity and its consequences. He was therefore sentenced to 18 months imprisonment of which **four (4) months was suspended for five years** on condition that he does not commit any offence of a

sexual nature within that period. The remaining 14 months were suspended on the basis that he performs community service.

None of the aggravating circumstances listed in the guidelines were present so the magistrate was correct in not imposing even a presumptive sentence of 3 years. However, though the 4 months custodial sentence was suspended, considering that the accused is youthful, being only nineteen years of age and that he is a first offender, a suspended prison sentence was harsh. This is taking into account the fact that the relationship between the accused and the complainant was consensual and devoid of violence, coercion or exploitation. Even a suspended prison sentence is serious as it creates a criminal record can affect a wide range of issues including education, employment and travel.

In determining an appropriate sentence, a court should carefully consider the legal and social context of sexual activity among peers. While the law sets a clear age of consent and must be upheld, courts have increasingly recognized that consensual sexual relations between adolescents or young persons close in age may differ substantially from exploitative or predatory conduct which the law primarily seeks to prevent. The Court notes that the age difference between the accused and the complainant is minimal, being approximately two years, and that both were at a similar stage of emotional and social development. There is no evidence that the accused exercised undue influence over the complainant or that the complainant was exposed to harm, degradation, or manipulation.

The offence therefore falls at the lowest end of the spectrum of seriousness for this category of crimes. Such peer relationships are often characterized by emotional attachment, mutual affection, and relative equality of power. The age difference between the accused and the complainant is relatively small. Age is in fact an important consideration in sentencing in sexual offences. Sentencing must balance the need for punishment and deterrence with the prospects of rehabilitation, particularly where the offender is young and the circumstances of the offence do not disclose predatory conduct.

A case in point is *State* v *Brain Masuku* HH 106/15 where it was emphasised that it is necessary to distinguish between predatory coercive or high age gap cases and consensual sex between peers.

> "Ignoring the reality of consensual sex among teenagers and adopting an overly formalistic approach to the crime can result not only in an unnecessarily punitive sentence, but also a criminal record and stigmatisation as a sex offender."

In that case the offender was 17 and she was 15. They were boyfriend and girlfriend.
He was sentenced to 24 months imprisonment of which 8 months imprisonment was suspended for 5 years on condition the accused is not convicted of any offence of a sexual nature committed within that period for which he is sentenced to imprisonment without the option of a fine. The remaining 16 months imprisonment is suspended on condition the accused completes 525 hours of community service. Granted the accused was still a minor. The court reduced the sentence and deemed community service wholly rehabilitative.

Sentencing must strike a careful balance between enforcing the law, promoting deterrence, and avoiding the undue criminalization of consensual peer relationships. In cases such as this, a rehabilitative and corrective approach is more appropriate than a harsh suspended custodial sentence. Having carefully weighed all the circumstances of the case, the Court is of the view that a suspended custodial sentence was disproportionate and would not serve the interests of justice as the accused at such a young age will have to carry the stigma of a suspended prison sentence. The community service portion of the sentence is sufficient. It does under the circumstances of the case warn the accused that sexual intercourse with an underage person, even a peer, attracts censure.

Accordingly, the accused is sentenced is altered to read as follows:

The offender is sentenced to 490 hours of community service at Muzarabani police station on the following conditions:-

a. Community service starts on 8/12/25 and must be completed within 15 weeks of that date.

b. Community service shall be performed between the hours of 0800 hours and 1600 hours on Mondays to Fridays which are not public holidays and to the satisfaction of the person in charge of that institution whom the court has granted authority to grant the offender leave of absence on a particular day (s) or during certain hours for good cause shown.

c. Any such leave shall not count as part of community service preformed.

d. To perform manual work.

TSANGA J: ……

CHILIMBE J: ……Agrees.